

THE CONSTITUTION

OF

DRUMVALE RIVERVIEW

WELFARE GROUP

APRIL 2023

ARTICLE 1: NAME AND LOCATION

- 1.1 The name of the group shall be **DRUMVALE RIVERVIEW WELFARE GROUP** hereinafter referred to as the organization.
- 1.2 The Offices of the organization shall be located in Kamulu Sub-location Machakos County in the republic of Kenya.
- 1.3 The Organization shall be non-profit making, non-partisan and non-religious denominational. It shall consist of Members residing within Drumvale riverview estate-Kamulu.
- 1.4 The organization shall be deemed to have come into force after registration at the Ministry of labour and social Protection.

ARTICLE 2: VISION & MISSION OF THE ORGANISATION

2.1 VISION

To uplift the living standards of members.

2.2 MISSION

To unite all the courts and work together for social well being.

ARTICLE 3.0: OBJECTIVES OF THE GROUP

- 3.1.1 To improve the living standards of members through establishing investment opportunities
- 3.1.2 To start and run a social welfare for helping members during difficult times.
- 3.1.3 To champion the academic standards of the members children.
- 3.1.4 To encourage saving culture among members.

3.1. ACTIVITIES OF THE GROUP

- 3.2.1 Carry out Family visits.
- 3.2.2 Fundraising
- 3.2.3 Participate in Investment projects.
- 3.2.4 Champion for security of our area.
- 3.2.5 Visiting members during times of need .
- 3.2.6 Promoting both formal and informal education among its members.
- 3.2.7 Sensitize members to participate in leadership forums at various levels

ARTICLE 4.0: MEMBERSHIP.

- 4.1 A person shall qualify for membership if;
 - a) He or she pays non refundable annual registration fee of **Kshs 100** or any other fee as maybe agreed and minuted by members in a general meeting.
 - b) He or she is residing within Drumvale riverview estate
 - c) He or she shall fill a membership registration form
 - d) He/she is an adult of 18 years and above according to the laws of Kenya.
 - e) Be introduced by two members of the group who have been **ACTIVE** for a period of not less than six months.
 - (f) He/she is of sound minded.
 - (g) He/she subscribes to the objectives of the group and not a critique.

ARTICLE 5.0: GENERAL DUTIES OF MEMBERS

- 5.1 Every member of the organization shall;

- (a) Pay an annual subscription fee if any that shall be determined from time to time by the General Assembly.
- (b) Comply with the provisions of this constitution and resolutions of the Executive committee and General Assembly.
- (c) Promote, develop, implement and protect the interests of the organization.
- (d) Meet all the obligations as shall be from time to time be determined by the organizations.
- (e) Comply with the welfare bylaws for welfare members.

ARTICLE 6.0: CESSATION OF MEMBERSHIP

6.1 A person shall cease to be a member of the organization if he/she;

- (a) Dies,
- (b) Resigns,
- (c) Is certified to be of unsound mind by a recognized medical practitioner.
- (d) Fails to comply with both the provisions of this constitution especially article 4(g) and the welfare bylaws for all members of the welfare.
- (e) Is expelled from the group provided that members shall not be expelled unless the Executive committee has heard and given two written warning to the member.

ARTICLE 7.0: DISCIPLINE OF MEMBERS

- 7.1 The executive committee shall have powers to suspend any member from the group if such a member acts and/or conducts himself in a manner prejudicial to the interests of the group.
- 7.2 For digital platform (Whatsapp), the group administrators shall have powers to suspend any member by removing him or her from the group if such a member acts and/or conducts or consistently goes against the group rules of engagement in article 25(c). The member will be given a chance to show no cause for action in writing to the executive within three days for readmission to the group. The same will apply to a member who leaves the platform at will without giving reasons.
- 7.3 The duration of such suspension shall be at the discretion of the executive committee provided it shall be reasonable in the circumstances.
- 7.4 The suspended member shall have the right to appeal to the General assembly within three (3) weeks from the date of the decision of the executive committee.
- 7.5 The General Assembly shall have powers to reinstate, further suspend or expel such a person.
- 7.6 In case of a disagreement with the decision of the General Assembly, the aggrieved party shall be at liberty to petition the council of elders for further management of the matter at hand.

ARTICLE 8.0: ORGANS OF THE GROUP

- 8.1 The organs of the organization shall be;
 - (a) The General Assembly (Members General Meeting).
 - (b) The Executive Committee.
- 8.2 The General Assembly shall be the over all governing body of the group.
- 8.3 There shall be a council of elders of the group who shall be persons of high moral standing, integrity and competent as the members of the group shall determine.

ARTICLE 9.0: GROUP GOVERNING COUNCIL

- 9.1 There shall be a group governing council which shall consist of;
 - (a) The Executive Committee.
 - (b) The court Representatives.
 - (c) 3 Council of elders

**ARTICLE 10.0: COMPOSITION, DUTIES AND RESPONSIBILITIES OF THE GROUP
EXECUTIVE COMMITTEE**

10.1 There shall be an executive committee of the group comprising of the following positions;

- (a) Chairperson
- (b) Vice Chairperson
- (c) Secretary General
- (d) Vice Secretary
- (e) Treasurer
- (f) Court Representatives
- (g) Welfare Officer
- (h) Group Spokesperson/Chief Whip
- (i) 2 members of the committee

10.2 The Chairperson shall;

- (a) Be the overall administrative head or manager of the group.
- (b) Call and preside over all group meetings.
- (c) Summon all emergency meetings whenever deemed fit.
- (d) Coordinate all the group activities of the executive committee.
- (e) Announce a case as advised by the welfare officer upon confirmation
- (f) Be the principal signatory to the group bank account if any.

10.3 The Vice Chairperson shall;

- (a) Perform the chairperson's duties in his absence apart from withdrawing money on the bank account.
- (b) Perform such other duties as may be assigned to him by the group executive committee.

10.4 The Treasurer shall;

- (a) Present audited accounts and financial reports at annual general assembly meetings.
- (b) Be responsible for the finances of the group
- (c) Perform such duties as may be assigned to him by the group executive committee
- (d) Keep proper books of accounts preserve the books and make them available for inspection by those authorized to do so.
- (e) Receive and disburse money if any belonging to group and shall obtain receipts for all money paid out by him or her.
- (f) Collect all subscription fees if any, members savings, membership registration fees and membership welfare contributions to the capital fund and all other money if any to which the group is entitled.
- (g) Be a mandatory signatory to all financial documents and bank account of the group.

10.5 The Secretary General shall;

- (a) Keep up-to-date register of all members
- (b) Take and keep records of all meetings.
- (c) Be the custodian of the members' confidential files and group instruments
- (d) Perform other duties as maybe assigned by the executive.
- (e) Be a Signatory to the organization bank account if any.

10.6 The Welfare Officer

- a) Shall inform the executive when a case or need from a member has risen.
- b) Shall investigate the case before it is announced.
- c) He or she shall ensure the welfare register is up to date and all members sign the attendance register.

- d) Ensure appropriate training and information is provided to members on welfare matters such as advice members to take medical insurance covers through organized public forums.
- e) The Welfare Officer is responsible for promoting safeguarding within their venue and working with others to ensure a safe and inclusive environment is achieved when one is bereaved.

10.7 The Court Representatives/Court Welfare chairpersons

Forms the link between the group and the court members.

10.8 The Council of Elders

- Provides dispute resolution mechanism at all levels.
- Provides advisory and wisdom to the executive and members at all levels.

10.9 The Group spokes person

He or she speaks on behalf of the members of the group. Dewhips both members and officials.

10.10 The Members of the Committee

To oversee the activities of the executive on behalf of the members. They sit in all executive meetings except special meetings convened by the chairman. They have a vote in any of the official sittings.

ARTICLE 11.0: ELECTION PROCEDEURE

- a) All Offices bearers may hold such office for a period not exceeding two consecutive terms.
- b) Subject to the provisions of this Constitution a term limit shall be equal to **three years**.
- c) Unless as the context may otherwise require, elections of the office bearers shall be held during the General Assembly.
- d) Subject to the provisions of this Constitution, the method of voting during Executive and General Meetings shall be by secret ballot unless members vote and agree on a different method.
- e) The Executive committee shall have powers to nominate three competent persons to an extraordinary general meeting among whom the presiding officer for the general elections shall be selected one month before the elections provided that no such person shall have connections with or be part of the organization.
- f) Handing and taking over of offices shall be done within five working days from the date of elections.

ARTICLE 12.:0 MEETINGS

12.1 There shall be monthly meetings to be held in the first week of each month on Sundays

12.2 There shall be executive committee meetings following the procedures below;

- (a) The executives committee shall meet monthly to conduct business at such times and places the chairperson shall choose.
- (b) The quorum at the Executive Committee meeting shall be two thirds of the members.
- (c) The committee may invite any persons of specialized training and knowledge to its meetings for purposes of advising the committee provided that such persons shall not have powers to vote.
- (d) Subject to the provisions of this constitution, the Executive Committee may regulate these procedures.

12.3 There shall be an Annual General Meeting organized in the following manner;

- (a) The organization shall convene an **annual general meeting** to be known as the general assembly in the months of February and September and this shall be specified in the notice calling the same.
- (b) At the general meeting, the general assembly shall be presided over by the chairperson of the Executive Committee.

- (c) The Secretary of the Executive Committee shall circulate the notice of the meeting and the agenda 7 days before the meeting.
- (d) Determination of any issue at the general assembly shall be by a simple majority vote of the registered members present in person and no proxies shall be allowed. The chairperson shall have a casting vote at the general assembly in the event of a tie.
- (e) The quorum at any general assembly shall be one half of the total full numbers.
- (f) The general meetings or general assembly shall take place at such places and time and dates as the Executive Committee may appoint, provided that where the Executive Committee fails to do summons the meeting by fourteen calendar months without reasonable cause, any registered member may cause call of the general assembly by petitioning the Secretary and serving copies to all Executive members.
- (g) Subject to the provisions of this constitution, the general assembly may regulate its procedures.

12.4 There shall be Special general meetings;

- (a) The executives committee shall call for a special general meeting to discuss an urgent matter. The secretary shall give all members a 3days notice of the intention of the meeting and its agenda. All members are entitled to attend and vote.

ARTICLE 13.0: THE GENERAL ASSEMBLY

13.1 The general assembly shall have the following;

- (a) Receiving and approving reports from the chairperson of the Executive committee on the activities of the organization for the previous year.
- (b) Receiving annual reports on projects.
- (c) Receiving and approving audited financial reports from the treasurer.
- (d) Deliberating any issue which may be raised by the members at the zonal level.

13.2 Attendance at the general assembly;

The annual general assembly shall be attended by;

- (a) Members of the executive committee.
- (b) All registered members of the organization.
- (c) Any persons or organizations that may be sharing aspirations with the organization and are sympathetic to the aims and objectives of the organization at invitation of the Executive Committee provided that this category shall not have powers to vote.

13.3 Extraordinary General Assembly;

An extraordinary meeting of the general assembly to conduct urgent business may be convened by;

- (a) The chairperson of the Executive Committee.
- (b) The quorum at the extraordinary general assembly shall be one third of the registered members of the organization.
- (c) Subject to the provisions of this constitution, the extraordinary general assembly may regulate its own procedures.

ARTICLE 14.0: SOURCES OF FUNDING

The funding sources of the organization shall include but not limited to the following;

- (a) Members' registration fees.
- (b) Money accruing from fundraising activities.
- (c) Money accruing from welfare contribution for new members.
- (d) Donations from donors and beneficiaries.
- (e) Government and its line ministries.
- (f) Members savings
- (g) Monies accruing from members case contribution
- (h) Interests arising from borrowing by members
- (i) Any other lawful source.

- 2) The monies obtained shall be used for group purposes only such as printing and photocopies, purchase of stationery, hiring of meeting halls, communication to members(Posters, airtime, print media, bundles etc) or any other purpose as it shall be approved by members from time to time. There will be annual budget for the office approved by members in an AGM.
- 3) All expenses must be approved by the general assembly and must be used within the approved Budget. All monies belong to the organization.
- 4) The executive committee shall have the powers to suspend any office bearer who it has reasonable cause to believe is not properly accounting for any of the funds or property of the group and shall appoint another person in an acting capacity. Such suspension shall be reported to the general meeting to be convened on a date not later than two months from the date of such suspension and the general meeting shall have full power to decide what further action should be taken in the matter.

ARTICLE 15.0: BANK ACCOUNT

- 1) Bank account(s) of the group shall be opened with any bank agreed upon by the General Assembly. The same members may further decide on such other financial institutions deemed fit.
- 2) Except as may otherwise be authorized by the General Assembly, the following any of the **three** Executive Committee members shall each, be signatories to the organizations bank account(s) at any material withdrawal.
 - (a) The Chairman.
 - (b) The Secretary.
 - (c) The Vice Secretary
 - (d) The Treasurer.
 - (e) The Committee Member
- 3) In the event of an intention to withdraw money exceeding **Kenya Shillings 20,000** or its equivalent, 2/3 of the Executive Committee shall have to first approve such.
- 4) Unless as may otherwise be authorized by the Executive Committee, the Treasurer shall not keep in either his official or personal custody any organization money received or not spent for a period exceeding five working days.
- 5) All group monies shall be used for the group purposes and the treasurer made to account for it with supporting documents. All expenditures to be made transparent during the general assembly.
- 6) The treasurer shall share the financial statement of the group to members in the monthly meetings.

ARTICLE 16.0: THE GROUP INSTRUMENTS

- a) There shall be a Seal/ Stamp/ logo for the group the design of which shall be approved by the Executive Committee.
- b) The seal/stamp shall be kept by the Secretary and shall be used by the Executive Committee to authenticate the official documents of the organization or documents to which the organization is party by its duly authorized officer(s).
- c) There shall be a membership registration form in a format to be prescribed by the group for members biodata.
- d) There shall be a group electronic equipment such as phone kept by the treasurer.
- e) There shall be membership welfare contribution release form. The form will be used for releasing member's contribution to the bereaved family.
- f) There shall be a file(s) for keeping members confidential information. The files shall be under the custodian of the secretary always kept under lock and key in compliant with data protection act on personal information.

ARTICLE 17.0: AMENDMENTS

- a. A member wishing to propose any amendment to this constitution shall give notice of such proposal by sending it to the secretary of the Executive committee at least two months before the meeting of the General Assembly.
- b. On receipt of such proposal, the secretary shall circulate copies of the same to all members.
- c. An amendment shall be affected by a majority vote of two thirds of the members present but entitled to vote.

ARTICLE 18.0: DISSOLUTION

- a) In the event of an admission that the objectives of the organization have failed to be attained by two thirds of the registered members, any member may upon such a basis move a motion of dissolution during the General Assembly.
- b) Subject to the provisions of this Constitution, the matter of dissolution shall only be affected if the motion is duly debated and carried by three quarters of the registered members provided that the proposal to move such a motion shall have been included on the agenda.
- c) In the event of dissolution and after settlement of the liabilities of the organization, the General Assembly shall appoint a caretaker committee to dispose off the assets of the organization in a manner to be determined by the General Assembly.

ARTICLE 19.0: INTERPRETATION

- a. Any disputing arising out of the interpretation of this constitution that may fail to be settled by the Executive Committee or the assembly shall be referred to a group of five competent and eminent persons to be appointed by the General Assembly.
- b. In this constitution unless the context otherwise requires, any references to the male sex includes the female sex.

ARTICLE 20.0 GROUP AUDIT

An auditor shall be appointed in the Annual General Meeting from among members of the Group. All the Groups accounts, records and documents shall be open to the inspection of the auditor at any time. The Treasurer shall produce an account of his/her receipts and payments and a statement of assets and liabilities made up to a date which shall not be less than four weeks and not more than eight weeks before the date of the Annual General Meeting.

The auditor shall examine such annual accounts and statements and either certify that they are correct, duly vouched and in accordance with the law or report to the Group in what respect they are found to be incorrect, unvouched or not in accordance with the law.

The group's books of accounts will be open for self audit by group members and external audits by any other responsible authority.

ARTICLE 21.0 GROUP WELFARE

Drumvale Riverview Welfare Bylaws

- 1) There shall be established an optional members welfare for all registered members.
- 2) All members **MUST** register with non refundable annual registration fee of **Kshs 100 for eligibility**. New members shall be required to pay entrance fee of **Kshs. 2,000** reviewed annually. The welfare is meant to assist members only during bereavement(benovelont). The welfare therefore will cover the following:
 - a. The principle member who is the main contributor.
 - b. Members of nuclear family which include children and spouses. Children include those at the age 30yrs and below and adopted children that will be supported by adoption documents. Children above 30yrs of age shall be required to join the welfare as members.

- c. Biological Parents of both spouses. However for needy cases where a member has lost a someone who has been like a parent to him or her, members will requested at will without any coercion to chip in and give assistance of any kind or amount but upon advisory from the executive committee. All information given shall be scrutinized thoroughly.
- d. For polygamous family, the principle member will be required to include all the wives in the cover under polygamous section in the registration form.
- 3) Members shall contribute **Kshs. 300** for the death of nuclear member of the family and **Kshs 500** in-case the principle member dies and **Kshs. 200** for parents and parents in-laws. The money contributed shall be given to the member before burial takes place and hence should not be announced in any forum. However for polygamous family the principle member shall contribute additional 50% of the contribution for subsequent wives(spouses) for each case scenario.
- 4) After a period of time the executive committee shall advise the members on the uniform figure to be given to a member for each case scenario for uniformity after considering the activeness of the members in contribution. The figure maybe reviewed upwards or downwards depending on the number of active registered members. After evaluation, the following figures were passed by members to be given to the bereaved family; For death of Parents or parents-inlaws **Kshs. 30,000**, Nuclear member **Kshs 60,000**, for death of Principle member **Kshs 100,000**.
- 5) In-case there are more than one member of the same family in the group welfare and they share a biological parent, members shall contribute the agreed amount of money for the late parent only not to the individual members. The contributions made shall be given to the principal members of that family on equal basis or as they may all decide in a meeting to be called by the executive officials during handover of the money ceremony.
- 6) The deadline for case contribution shall be **STRICTLY 7days** effective the date the case is announced by the Chairman. There shall be no more contribution update on the group wall after case closure. But members must update their records for future case consideration
- 7) Members **MUST** contribute consistently. Any member with arrears of three cases shall not qualify for any assistance. A member shall be disqualified from the welfare if she or he does not contribute for three consecutive cases or falls in arrears.
- 8) The Secretary and the Treasurer shall update all member's contribution through the digital platform (Whatsapp) within the stipulated period and record kept in the welfare register for future reference.
- 9) The members' personal record shall be kept confidential. Any violation for confidentiality will dealt with by available laws of the land.

Case Consideration Requirements

1. Principal member must fill a membership registration form upon entry.
2. Must contribute the required amount upon request as case arises.
3. The case per case contribution must be consistent. Refer to clause (9)
4. Existing members who left the welfare and wishes to join after several cases (**more than 4cases**) have happened shall be required to pay for all the cases before being allowed back.
5. New members shall be vetted by the executive and members to ascertain if indeed they are new (New members means they have purchase property in the area, they have relocated to the area for work related, they were outside on work related,)
6. If a member is found liable of lying to the members as being new in the area, he or she will be required to pay an amount equivalent to all the previous cases or any other amount as the executive will agree in an emergency meeting.
7. New members shall be required to pay a certain amount of money to the welfare for acquiring assets such as tents and chairs etc.
8. A new member shall wait for a period of **Two Months** from the date of entry for the welfare to assist.

The welfare bylaws maybe reviewed from time to time as members may decide in the general assembly. Members may also agree on the best method to deal with welfare matters in an annual general meeting.

ARTICLE 22.0: MEMBERS SAVINGS

- a) Members shall be allowed to save **Kshs 100** per month which will be one share. Members will be allowed to save a min of one share and unlimited shares. One can own more than one share.

ARTICLE 23.0: LOANS AND INTERESTS

- a) The group shall give out loans to members from the members savings at an interest rate of **10%**. The loan period shall be within 3months. A member will qualify for the loan after saving for 6months. There will be established loan committee to vet the loan beneficiaries and also help in loan recovery. The committee will advise the loan amount upon application

ARTICLE 24.0: INTERESTS ON LOANS

- a) Interests earned from the loans will be shared as per the no of shares owned by member per year.

ARTICLE 25.0: MODE OF COMMUNICATION

- a) The group shall communicate to its members through digital platform (WhatsApp group,telegram, twitter,instagram, facebook etc), text messages, phone calls, posters or print media, radio announcement.
- b) The group may determine from time to time the best mode of communication to members depending on the available resources.
- c) On digital platform, there will be no use of language that would want to infringe to the rights of a member, no forwarding of unnecessary materials such as videos, photos etc that are totally off the group objectives and would eat to the storage memories of members devices. Members will have the freedom of expression in the platform. No one will be discriminated.
- d) Any member who violates c) above will be dealt with article 7 (7.2).

ARTICLE 26.0 RESIGNATION FROM THE GROUP

- (a) Any member desiring to resign from the Group shall do so immediately.
- (b) Any member who falls into arrears with case per case contribution for more than three cases without giving a reason shall automatically cease to be a member and his/her name struck off the welfare register and therefore shall not enjoy the welfare benefit. However special cases such as sickness that will lead to incapacitation shall be given for consideration by the executive office.any member who resigns from the group will receive 80% of her or his savings.

We the members of **DRUMVALE RIVERVIEW WELFARE GROUP** do hereby adopt this Constitution and agree to be bound by the terms contained here in above by countersigning on our respective names and titles.

NAME

TITLE

SIGNATURE